



CHAPTER lxii.

An Act to authorise the urban district council of A.D. 1915.
Ashington to construct new waterworks to confer
further powers on the Council in regard to their water
undertaking and for other purposes. [29th July 1915.]

WHEREAS the district of Ashington in the county of Northumberland (in this Act referred to as "the district") is an urban district within the meaning of the Local Government Act 1894 and is under the management and control of the urban district council of Ashington (in this Act referred to as "the Council"):

And whereas the Council under the powers of the Public Health Acts have established waterworks and are now supplying the district with water but such supply is inadequate to meet the existing and growing demands of the inhabitants of the district and it is expedient that the Council be empowered to construct new works for the purpose of increasing their existing supply:

And whereas it is expedient that such further provisions as are in this Act contained should be made with respect to the water undertaking of the Council:

And whereas it is expedient that the Council should be empowered to borrow money for the construction of the waterworks by this Act authorised and for the other purposes of this Act:

And whereas estimates have been prepared by the Council for the purposes hereinafter mentioned in respect of which borrowing powers are conferred upon the Council by this Act and such estimates are as follows:—

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A.D. 1915.	For the purchase of land and easements for and	£
—	the execution of the waterworks by this Act	
	authorised - - - - -	73,000
	For new mains extensions of mains service pipes	
	and other waterworks purposes - - - - -	8,000

And whereas the several works included in the said estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years:

And whereas it is expedient that the other provisions contained in this Act be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed and the consent of the Local Government Board has been obtained:

And whereas plans and sections showing the lines and levels of the works authorised by this Act and also a book of reference containing the names of the owners or reputed owners and lessees or reputed lessees and occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the county of Northumberland and are in this Act referred to as the deposited plans sections and book of reference:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PART I.

PRELIMINARY.

Short and collective titles.

1. This Act may be cited as the *Ashington Urban District Council Act 1915* and this Act and the *Ashington Urban District Council Act 1914* may be cited together as the *Ashington Urban District Council Acts 1914 and 1915*.

Division of Act into Parts.

2. This Act is divided into Parts as follows:—
 Part I.—Preliminary.
 Part II.—Waterworks.

Part III.—Lands.

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Part IV.—Supply of water.

Part V.—Financial.

Part VI.—Miscellaneous.

3. The following Acts and parts of Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act (namely):—

Incorporation of Acts.

(1) The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845);

(2) The Waterworks Clauses Acts 1847 and 1863 except—

(A) The words “with the consent in writing of owner or reputed owner of any such house or of the agent of such owner” in section 44 of the Waterworks Clauses Act 1847;

(B) Sections 75 to 82 of the Waterworks Clauses Act 1847 with respect to the amount of profit to be received by the undertakers when the waterworks are carried on for their benefit and section 83 relating to accounts; and

(3) The provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof and in such provisions for the purposes of this Act “the railway” means the works by this Act authorised and “the centre of the railway” means the boundaries of the reservoir and the centre lines of the aqueducts conduits or lines of pipes.

4. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Public Health Acts have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act unless the subject or context otherwise requires—

Interpretation.

“The district” means the urban district of Ashington in the county of Northumberland;

“The Council” means the urban district council of the district;

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c. xxxiv.

“The Act of 1914” means the Ashington Urban District Council Act 1914;

“The limits of supply” means the area within which the Council are for the time being authorised to supply water;

“The water undertaking” means the water undertaking of the Council as existing and as authorised by this Act;

“The water revenue” means and includes all moneys received by the Council for or in relation to their water undertaking other than borrowed moneys and other moneys which ought to be carried to the account of capital;

“The clerk” and “the surveyor” mean respectively the clerk and the surveyor of the district and respectively include any person duly authorised to discharge temporarily the duties of those offices;

“The district fund” and “the general district rate” mean respectively the district fund and the general district rate of the district;

“Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Council.

PART II.

WATERWORKS.

Power to
make works.

5. Subject to the provisions of this Act the Council may wholly in the county of Northumberland and in the lines and situation and upon the lands delineated on the deposited plans and described in the deposited book of reference make and maintain the following works shown on the deposited plans and sections (that is to say):—

Work No. 1 An aqueduct conduit or line or lines of pipes A.D. 1915.
commencing in the parish of Newtown at a point where
a straight line 477 yards or thereabouts in length
measured in a westerly direction from the southern
corner of the enclosure in the parish of Newtown
numbered 23 on the $\frac{1}{2500}$ Ordnance map Northumberland
sheet XLIV. 14 (second edition 1897) would intersect a
straight line 350 yards or thereabouts in length measured
in a south-westerly direction from the western corner of
the said enclosure and terminating in the parish of Tosson
at a point where a straight line 197 yards or thereabouts
in length measured in a south-easterly direction from the
north-eastern corner of the enclosure in the parish of
Tosson numbered 88 on the $\frac{1}{2500}$ Ordnance map North-
umberland sheet XLIV. 10 (second edition 1897) would
intersect a straight line 179 yards or thereabouts in
length measured in a south-westerly direction from the
southern corner of the enclosure in the parish of Tosson
numbered 82 on the aforesaid map sheet XLIV. 10:

Work No. 2 An aqueduct conduit or line or lines of pipes
situated in the parish of Newtown commencing at a point
where a straight line 350 yards or thereabouts in length
measured in a westerly direction from the southern
corner of the enclosure in the parish of Newtown num-
bered 23 on the $\frac{1}{2500}$ Ordnance map Northumberland
sheet XLIV. 14 (second edition 1897) would intersect a
straight line 235 yards or thereabouts in length measured
in a south-westerly direction from the western corner of
the said enclosure and terminating by a junction with
Work No. 1 at a point where a straight line 275 yards or
thereabouts in length measured in a north-westerly direc-
tion from the southern corner of the said enclosure
numbered 23 would intersect a straight line 73 yards or
thereabouts in length measured in a south-westerly direction
from the western corner of the said enclosure:

Work No. 3 An aqueduct conduit or line or lines of
pipes situated in the parish of Newtown commencing at
a point where a straight line 455 yards or thereabouts
in length measured in a westerly direction from the
southern corner of the enclosure numbered 23 on the
 $\frac{1}{2500}$ Ordnance map Northumberland sheet XLIV. 14

A.D. 1915.

(second edition 1897) would intersect a straight line 307 yards or thereabouts in length measured in a south-westerly direction from the western corner of the said enclosure and terminating by a junction with Work No. 1 at a point where a straight line 407 yards or thereabouts in length measured in a north-westerly direction from the southern corner of the said enclosure numbered 23 would intersect a straight line 147 yards or thereabouts in length measured in a westerly direction from the western corner of the said enclosure:

Work No. 4 An aqueduct conduit or line or lines of pipes situated in the parish of Newtown commencing at a point where a straight line 102 yards or thereabouts in length measured in a southerly direction from the southern corner of the enclosure numbered 84 on the ¹/₂₅₀₀ Ordnance map Northumberland sheet XLIV. 10 (second edition 1897) would intersect a straight line 175 yards or thereabouts in length measured in a south-easterly direction from the most western corner of the said enclosure and terminating by a junction with Work No. 1 at a point where a straight line 59 yards or thereabouts in length measured in a south-westerly direction from the southern corner of the said enclosure numbered 84 would intersect a straight line 123 yards or thereabouts in length measured in a south-easterly direction from the most western corner of the said enclosure:

Work No. 5 An aqueduct conduit or line or lines of pipes situated in the parish of Tosson commencing at a point where a straight line 152 yards or thereabouts in length measured in a south-easterly direction from the north-eastern corner of the enclosure in the parish of Tosson numbered 88 on the ¹/₂₅₀₀ Ordnance map Northumberland sheet XLIV. 10 (second edition 1897) would intersect a straight line 153 yards or thereabouts in length measured in a south-westerly direction from the southern corner of the enclosure in the parish of Tosson numbered 82 on the aforesaid map sheet XLIV. 10 and terminating by a junction with Work No. 1 at a point where a straight line 200 yards or thereabouts in length measured in a south-easterly direction from the north-eastern corner of

the said enclosure numbered 88 would intersect a straight line 78 yards or thereabouts in length measured in a south-westerly direction from the southern corner of the said enclosure numbered 82: A.D. 1915.

Work No. 6 An aqueduct conduit or line or lines of pipes commencing in the parish of Tosson at a point where a straight line 106 yards or thereabouts in length measured in a south-westerly direction from the southern corner of the enclosure in the parish of Tosson numbered 84 on the $\frac{1}{2500}$ Ordnance map Northumberland sheet XLIV. 10 (second edition 1897) would intersect a straight line 128 yards or thereabouts in length measured in a southerly direction from the most western corner of the aforesaid enclosure and terminating in the district at a point in the middle of the road in front of the Portland Arms Hotel:

Work No. 7 A service reservoir situated in the parish of Cockle Park in the north-eastern part of the enclosure numbered 44 on the $\frac{1}{2500}$ Ordnance map Northumberland sheet LXIV. 1 (second edition 1897).

In addition to the foregoing works the Council may upon the said lands make and maintain all such cuts channels catch-waters tunnels adits pipes conduits culverts drains sluices byewashes shafts wells bores water towers overflows waste-water channels gauges filter-beds tanks banks walls bridges embankments piers approaches engines machinery and appliances as may be necessary or convenient in connection with or subsidiary to the before-mentioned works or any or either of them or for the general purposes of the water undertaking but the Council shall not pump or otherwise raise any water by means of any of the before-mentioned or other works machinery or appliances and nothing in this section shall exonerate the Council from any action indictment or other proceeding for nuisance in the event of any nuisance being caused or permitted by them.

In connection with the service reservoir (Work No. 7) in this section mentioned the Council shall provide maintain and use an automatic valve for the purpose of preventing waste of water and insuring that as far as reasonably practicable any surplus water not required for supply under any of the provisions of this Act shall pass down the Routing Burn.

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The top of any borehole and the bottom or invert of any adit drift pipe drain or other channel for taking or abstracting water shall be not less than four feet above the top of the slot or aperture of the measuring gauge hereinafter referred to.

Limits of deviation.

6. In the construction of the works authorised by this Act the Council may deviate laterally to any extent not exceeding the limits of lateral deviation shown on the deposited plans and where on any road no such limits are shown the boundaries of such road shall be deemed to be such limits and they may also deviate vertically from the levels shown on the deposited sections to any extent not exceeding five feet upwards and to any extent downwards Provided as follows (that is to say):—

The Council shall not construct any embankment or wall of the reservoir by this Act authorised of a greater height above the general surface of the ground than that shown on the deposited sections in respect of the corresponding embankment or wall and three feet in addition:

Except for the purposes of crossing over a stream or railway no part of the aqueducts conduits or lines of pipes shall be raised above the surface of the ground unless and except so far as is shown on the deposited sections.

Period for completion of works.

7. If the works by this Act authorised are not completed within seven years from the passing of this Act the powers by this Act granted for the making thereof or otherwise in relation thereto shall cease except as to so much thereof as is then completed Provided always that subject to the restrictions and provisions of this Act the Council may at any time after the expiration of the said period lay down additional lines of pipes and alter enlarge extend and renew their mains pipes and other works as they may think expedient to provide for the requirements of their water supply.

Power to take waters.

8. Subject to the provisions of this Act the Council may collect impound take use divert and appropriate for the purposes of the water undertaking the springs known as Cockpit Well and Cowet Wells and the waters of the Routing Burn and of all such springs streams and waters as may be taken or intercepted by the works by this Act authorised.

Restriction upon quantity of water to be taken.

9.—(1) The Council shall place a measuring gauge across or adjacent to the Routing Burn at a point as near as practicable

from an engineering point of view below the point where the water is abstracted and all water taken by the Council under the powers of this Act shall be collected at a point above the said measuring gauge and through an aperture in the said measuring gauge four hundred thousand gallons of water shall be allowed to pass and flow down the said burn every day of twenty-four hours. A.D. 1915.

(2) On any such day during such time as the flow of water through the said measuring gauge into the said burn shall be less than at the rate of four hundred thousand gallons per day of twenty-four hours the Council shall not be entitled to draw any water from the said burn or to appropriate and carry away any other water which they are by this Act authorised to take but during such time as the flow of water in the said burn is in excess of such rate the Council may take all or such part of the excess as they may require.

(3) The said measuring gauge shall be open to the inspection and examination of the board of conservators of the Coquet Fishery district and of all persons interested therein.

(4) In case of any neglect on the part of the Council to maintain any gauge in a state of efficiency and in case of any other neglect by or in consequence of which the said quantity of water shall not be allowed so to pass and flow the Council shall for every day on which such neglect occurs forfeit and pay to each of the persons affected thereby including the said board of conservators (who may sue for and recover the same) the sum of five pounds and shall in addition make compensation for any loss damage or injury sustained by such persons or any of them.

(5) If any difference arises between the Council and the said board of conservators or any person so interested with respect to the construction or use of any gauge or the state of repair or condition thereof such difference shall be referred to the arbitration of an engineer to be nominated (unless otherwise agreed) on the application of either of them by the Board of Trade.

10. Not less than three months before taking any water under the powers of this Act the Council shall pay to the board of conservators of the Coquet Fishery district the sum of one hundred pounds which sum shall be expended by that board

Payment for
benefit of
fisheries.

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Application
of Water-
works
Clauses Act
1847 to
pipes &c.

11. The provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets shall apply with the necessary modifications to the construction laying down erection and maintenance in any streets or roads of the aqueducts conduits or lines of pipes authorised by this Act and of any discharge pipes telephone or telegraph posts wires conductors or apparatus which the Council may and which they are hereby authorised to lay down or erect for the purposes of their water undertaking.

For protec-
tion of
Postmaster-
General.

12. No telephone or telegraph posts wires conductors or other apparatus erected laid down made or maintained under the authority of this Act shall be used for transmitting telegrams which are within the exclusive privilege conferred on the Postmaster-General by the Telegraph Act 1869.

Temporary
discharge of
water into
streams.

13.—(1) For the purpose of constructing enlarging extending repairing cleansing or examining the aqueducts reservoirs and other waterworks of the Council the Council may cause the water in such works or any of them to be temporarily discharged into any available stream or watercourse Provided that any water so discharged shall be as free as may be reasonably practicable from mud or solid or offensive matter.

(2) In the exercise of the power conferred by this section the Council shall do as little damage as may be and shall pay compensation to all persons for all damage sustained by them by the exercise of such power the amount of compensation to be settled in default of agreement by arbitration in accordance with the provisions of the Arbitration Act 1889.

As to exer-
cise of
powers of
section 12 of
Waterworks
Clauses Act
1847.

14. The Council may on all or any of the lands for the time being held by them in connection with their water undertaking execute for the purposes of or in connection with the said undertaking any of the works mentioned in section 12 of the Waterworks Clauses Act 1847 (other than wells and works for taking and intercepting water) Provided that the

Council shall not under the powers of this section create or permit the creation or continuance of any nuisance on any such lands nor erect any buildings thereon except offices and dwellings for persons in their employment and such buildings and works as may be incident to or in connection with the water undertaking. A.D. 1915.

15. The Council shall not construct any works for taking or intercepting water from any lands acquired by them in connection with the water undertaking unless the works are authorised by this or some other Act of Parliament and the lands on which the same are to be constructed are specified in this or some other Act of Parliament. Provided that nothing in this section shall be deemed to prohibit the deepening or enlargement of any existing borehole or well of the Council. Limiting powers of Council to abstract water.

16. For the purpose of enabling them to give a supply of water under the provisions of this Act the Council shall have and may exercise the powers which a local authority would have under section 54 of the Public Health Act 1875 with respect to the carrying of water mains within and without their district. Application of provisions of Public Health Acts as to laying of water mains.

17. The Council may on the application of the owner or occupier of any premises within the limits of supply abutting on or being erected in any street laid out but not dedicated to public use supply those premises with water and for that purpose the Waterworks Clauses Act 1847 shall apply as if section 29 of that Act were excepted from incorporation in this Act. Power to lay pipes in streets not dedicated to public use.

18. For the protection of the county council of Northumberland (in this section referred to as "the county council") the following provisions shall unless otherwise agreed in writing between the Council and the county council have effect (that is to say):— For protection of Northumberland County Council.

(1) In this section if not inconsistent with the context the following terms shall have the meanings hereinafter respectively assigned to them (that is to say):—

(a) The expression "main road" means a main road vested in the county council;

(b) The expression "bridge" means a bridge vested in the county council;

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(c) The expression "the aqueduct" means the aqueduct conduit or line or lines of pipes (Work No. 6) by this Act authorised:

(2) In the construction of the aqueduct the following provisions shall have effect:—

(a) The aqueduct shall not without the consent of the county council be constructed across or so as to interfere with the structure of any of the bridges numbered on the deposited plans 4 8 and 12 in the parish of Debdon 1 in the parish of Raw 2 9 13 and 14 in the parish of Brinkburn Low Ward 2 in the parish of Bigges Quarter and 4 in the parish of Riddell's Quarter and no bridge or piers constructed by the Council to carry the aqueduct shall without the like consent be constructed within fifteen feet of any such bridge as existing at the passing of this Act;

(b) The piers supporting any bridge by which the aqueduct shall be carried across the River Coquet on the east side of Weldon Bridge shall be constructed so as to cause as little obstruction as possible to the flow of the said river and so that no portion thereof shall be less than fifteen feet distant from the cutwaters of the said Weldon Bridge as existing at the passing of this Act;

(c) The Council shall not use any stone culvert vested in the county council as a means of support for the aqueduct and if in the construction of the aqueduct any such stone culvert is injured the Council shall make good the same as soon as possible to the reasonable satisfaction of the county council;

(d) Fourteen days before commencing the construction of any portion of the aqueduct over across under or in any way affecting any bridge or culvert or within fifteen feet of the same the Council shall submit to the county council detailed plans sections and specifications of the works proposed to be constructed and such works shall be constructed only according to such plans sections

and specifications as may be reasonably approved by the county surveyor and under his superintendence if he shall give the same Provided that if the county surveyor shall not within fourteen days after such plans sections and specifications shall have been submitted express his approval or disapproval thereof and in the latter case signify his requirements in relation thereto he shall be deemed to have approved thereof; A.D. 1915.

(e) Any part of the aqueduct which is to be laid in or along any main road shall where reasonably practicable be laid in such position in or at the side thereof as the county surveyor may in writing reasonably direct and at a depth of not less than two feet six inches from the top of the barrel of the aqueduct to the level of the surface of the macadamised portion of the road;

(f) The aqueduct shall be so constructed as not to stop the traffic or (except so far as is absolutely necessary) to impede or interfere with the traffic over or along any main road or bridge or approach as aforesaid and (except with the consent of the county surveyor) the Council shall not open or break up at any one time a greater consecutive length of any such main road or bridge or approach than two hundred yards and shall leave an interval of at least one hundred yards between any two places which they open or break up at the same time:

- (3) The Council shall make full compensation to the county council for all damage and expenses reasonably incurred in relation to the reinstatement of any roads bridges or other works from time to time by reason or in consequence of the leaking bursting or giving way of any aqueduct or other work by this Act authorised:
- (4) Nothing in this Act shall interfere with the right of the county council at any time to divert alter widen or reconstruct any main road or to remove alter widen or rebuild any bridge or culvert or the approaches thereto over under or near or attached to

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which the aqueduct or any other works in connection therewith are carried and in the event of any such road bridge culvert or approaches in alongside over under or near or attached to which such aqueduct or works are carried being diverted removed altered rebuilt widened or reconstructed as aforesaid the Council shall within such reasonable time as the county surveyor may prescribe alter such aqueduct or works to such position as he may reasonably fix and replace the same to his reasonable satisfaction Provided that before such diversion removal alteration rebuilding widening or reconstruction of such road bridge culvert or approaches the county council shall except in cases of emergency give twenty-one days' notice in writing to the Council of their intention to carry out such works and if in order not to interrupt the continuous supply of water or to diminish the pressure of such supply through such aqueduct or works it is in the opinion of the county surveyor necessary to temporarily remove such aqueduct or works from such road bridge culvert or approach then the Council shall (and they are hereby authorised so to do) temporarily carry their works across any stream or brook or by the side of such road in such manner as will not be a danger or inconvenience to the public or unreasonably interfere with the works to be carried out by the county council Provided that in the case of the diversion improvement alteration widening or reconstruction of any main road the county council shall repay to the Council any expense reasonably incurred by them in compliance with any requirements of the county surveyor under this subsection or in temporarily carrying their works by the side of such main road :

- (5) The notice required by section 30 of the Waterworks Clauses Act 1847 to be given to the county council whether in regard to the aqueduct and works by this Act authorised or in regard to any other pipes or works to be laid by the Council in connection with their water undertaking shall (except in cases of emergency arising from defects in the aqueduct or any of the pipes or other works of the Council)

be not less than in the case of any bridge or culvert or approaches thereto fourteen clear days and in the case of any main road seven clear days instead of three clear days: A.D. 1915.

- (6) If any difference arise between the Council and the county council or the county surveyor under this section such difference shall be referred to and settled by an arbitrator to be agreed upon between the parties or in default of agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 shall apply to any such reference.

19. The following provisions for the protection of the North Eastern Railway Company (in this section called "the company") shall unless otherwise agreed between the company and the Council apply and have effect:—

For protec-
tion of North
Eastern
Railway
Company.

- (1) The Council shall not under the powers of this Act without the consent in writing of the company take or acquire by compulsion any lands or property of the company but they shall be entitled to purchase and acquire such right or easement or privilege in and under any lands or property of the company as shall be necessary for the purpose of laying and maintaining the aqueduct conduit and line or lines of pipes (Work No. 6) by this Act authorised:
- (2) All aqueducts conduits mains pipes and other works laid or proposed to be laid or maintained by the Council under or in pursuance of the powers of this Act over or under any bridge of the company shall be carried over or under the same in such a way as not to interfere with the structure of any such bridge and all other such works laid or proposed to be laid or maintained by the Council under or in pursuance of the powers of this Act which shall cross any railway of the company shall be carried under the same in such a way to the reasonable satisfaction of the engineer of the company as will admit of such works being relaid or repaired without interference with the railway:

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- (3) Notwithstanding anything contained in this Act or shown upon the deposited plans in constructing Work No. 6 under the company's railway the same shall be laid within the limits of the road in such a manner as not to interfere with the safety and stability of the abutments of the company's bridge:
- (4) In laying and maintaining any such works over under or across any work or property of the company the Council shall execute and maintain their works under the direction and superintendence if the same be given and to the reasonable satisfaction of the engineer of the company and in accordance with plans drawings and specifications previously submitted to and reasonably approved by him and shall pay and make good to the company all loss damages and expenses which the company shall sustain or be put to by or in consequence of the construction bursting leakage or failure of any such works of the Council:
- (5) The company may repair and when necessary alter or reconstruct their railways or any bridge under or over which the said works or any of them may be laid but not so as to injuriously affect the said works of the Council or to interrupt the water supply otherwise than may be reasonably necessary in connection with any work of repair alteration or reconstruction by the company and if any injury or other interruption shall arise to the said works or any of them from or be owing in any way to any works or operations of the company on any railway or on any such bridge the company shall forthwith make good or remove such injury or interruption at their own expense or failing their doing so the Council may do the same and the company shall pay to the Council all costs and expenses loss or damage incurred or sustained by them in respect thereof Provided that any such works of the company shall so far as they may interfere with the said works of the Council be done to the reasonable satisfaction of the engineer of the Council Any extra expense which the company may incur in such repair alteration or reconstruction by reason of

the construction or existence of the said works shall be paid by the Council and such extra expense if any shall failing agreement be determined by the arbitrator to be appointed as after mentioned: A.D. 1915.

- (6) If the company give to the Council notice that they themselves desire to execute so much of any works of the Council or of any alteration thereof as will affect any railway or work belonging to the company the company may themselves execute such works and alterations and recover the reasonable cost thereof from the Council:
- (7) Any difference (other than a difference to which the Lands Clauses Acts apply) which may arise between the Council and the company or their respective engineers under the foregoing provisions of this section shall be determined by a single arbitrator to be appointed in case of difference by the Board of Trade and subject thereto the provisions of the Arbitration Act 1889 shall apply to such arbitration.

20. The following provisions for the protection of the North British Railway Company (hereinafter called "the North British Company") shall unless otherwise agreed between the North British Company and the Council apply and have effect (that is to say):—

For protec-
tion of North
British
Railway
Company.

- (1) The Council shall not under the powers of this Act take or acquire by compulsion any lands or property of the North British Company but shall be entitled to purchase and acquire such easements in and under the land and property of the North British Company as may be required for making and maintaining in accordance with the provisions of this Act the aqueduct conduit or line or lines of pipes (Work No. 6) by this Act authorised:
- (2) Before commencing the construction under or in pursuance of the powers of this Act of any works affecting the lands or property of the North British Company the Council shall submit plans sections and specifications of the said works to the North British Company for their approval and the said works shall be constructed and carried out in

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conformity with such plans sections and specifications as approved and at the sight and to the reasonable satisfaction of the engineer of the North British Company and such works shall thereafter be maintained by the Council to the reasonable satisfaction of such engineer Provided that the approval of the North British Company shall not be unreasonably withheld and that it shall be deemed to have been given unless the North British Company signify their disapproval within fourteen days after submission of the said plans sections and specifications Provided also that any expenses which the North British Company may reasonably incur for inspection or superintendence of the said works during execution or in connection with the maintenance or repair of the said works at any time or in protecting their property during or in connection with the construction maintenance or repair of the said works shall be repaid to them by the Council:

- (3) All the works and operations of the Council under or in pursuance of the powers of this Act shall be constructed executed and completed so as not to injuriously affect the structure of any bridge of the North British Company or to cause any injury thereto or to any railway of that company or any interruption to the passage or conduct of traffic thereon and if any injury or interruption shall arise from or be in any way owing to the works or operations of the Council or the bursting leakage or failure of the said works or any of them the Council shall forthwith make good or remove such injury or interruption at their own expense or the North British Company may do the same and the Council shall pay to the North British Company all proper and reasonable costs and loss or damage including loss of traffic incurred or sustained by them in respect thereof:
- (4) The Council shall free and relieve the North British Company from all claims whatsoever by third parties arising out of the construction or existence of the said works or the bursting leakage or failure thereof:

(5) The North British Company may repair and when A.D. 1915.

necessary alter or reconstruct their railways or any bridge under or over which the said works or any of them may be laid but not so as to injuriously affect the said works of the Council or to interrupt the water supply otherwise than may be reasonably necessary in connection with any work of repair alteration or reconstruction by the North British Company and if any injury or other interruption shall arise to the said works or any of them from or be owing in any way to any works or operations of the North British Company on any railway or on any such bridge the North British Company shall forthwith make good or remove such injury or interruption at their own expense or failing their doing so the Council may do the same and the North British Company shall pay to the Council all costs and expenses loss or damage incurred or sustained by them in respect thereof Provided that any such works of the North British Company shall so far as they may interfere with the said works of the Council be done to the reasonable satisfaction of the engineer of the Council Any extra expense which the North British Company may incur in such repair alteration or reconstruction by reason of the construction or existence of the said works shall be paid by the Council and such extra expense if any shall failing agreement be determined by the arbitrator to be appointed as after mentioned:

(6) If any difference shall arise between the Council and the North British Company or between their respective engineers under the foregoing provisions of this section (including any difference as to the meaning of the said provisions) other than a difference to which the Lands Clauses Acts apply such difference shall be determined by a single arbitrator to be appointed by the Local Government Board on the application of either party and subject thereto the provisions of the Arbitration Act 1889 shall apply to such arbitration.

21. For the protection of the Rothbury Waterworks Company Limited (in this section referred to as "the company") the

For protection of
Rothbury

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A.D. 1915. following provisions shall apply and have effect unless otherwise
Waterworks agreed in writing between the Council and the company (that
Company is to say):—
Limited.

- (1) If during or subsequently to the construction of the works by this Act authorised any diminution shall occur in the supply of water required by the company from their White Park Well for the purposes of their undertaking and it is proved that such supply is diminished by reason of the works or operations of the Council the Council shall with all reasonable dispatch after receipt of a request in writing so to do from the company supply from time to time free of cost to the company from a point on the Aqueduct Work No. 6 where such aqueduct crosses the public road numbered on the deposited plans 2 in the parish of Whitton such a quantity of water as may be required to make good such diminution:
- (2) The Council shall not be liable in respect of any claim made by the Company under this section if they shall have failed after being so requested in writing by the Council to afford to the officers servants or other representatives of the Council at all reasonable times after the passing of this Act access to the said White Park Well for the purpose of ascertaining particulars thereof and erecting maintaining and inspecting a gauge to measure the flow of water in the said well:
- (3) For the purpose of measuring the quantity of water obtained by the company from the White Park Well the Council shall provide in some suitable chamber or building a recording meter or other apparatus and all necessary works and appliances appertaining thereto:
- (4) The Council shall at all reasonable times be at liberty to inspect such gauge meter and apparatus and to test the accuracy thereof The said gauge chamber or building and meter and all pipes and other necessary apparatus shall be constructed provided fixed and maintained by the Council to the reasonable satisfaction of the company:
- (5) All water (if any) supplied to the company by the Council under this section shall be measured by a

recording meter or other apparatus to be provided by and at the expense of the Council in some suitable chamber or building and the company shall at all reasonable times be at liberty to inspect such chamber or building meter and apparatus and to test the accuracy of such meter and apparatus: A.D. 1915.

- (6) Any question or dispute arising under this section shall be referred to and determined by a single arbitrator to be agreed on between the parties or failing agreement to be appointed by the President of the Institution of Civil Engineers on the application of either party after notice to the other and subject thereto the provisions of the Arbitration Act 1889 shall apply to the reference.

22. For the protection of the Most Noble William John Arthur Charles James Duke of Portland K.G. and his sequels in estate or other the owner or owners for the time being of the Portland Estate in the county of Northumberland or of any lands in respect of which rights or easements may have been granted to the Council under the provisions of this section (all of whom are in this section referred to as "the owner") the following provisions shall notwithstanding anything contained in this Act and unless otherwise agreed between the owner and the Council apply and have effect (that is to say):— For protection of Duke of Portland.

- (1) Before commencing to construct the service reservoir (Work No. 7) by this Act authorised the Council shall purchase and the owner if so required by the Council will convey to them free from incumbrances at the price or sum of fifty pounds per acre the freehold and inheritance in fee simple (subject to the existing tenancies) of and in the lands numbered on the deposited plans 14 in the parish of Cockle Park in the county of Northumberland but reserving to the owner all mines of coal ironstone and other minerals therein or thereunder:
- (2) The owner will at the request of the Council grant to the Council free of cost such rights and easements as the Council may reasonably require to enable them to construct maintain alter and renew the aqueducts conduits or lines of pipes by this Act

A.D. 1915.

authorised so far as the same may be authorised in on or under any lands of the owner and will in consideration of a perpetual annual payment calculated at the rate of one penny a year per lineal yard grant to the Council all such rights or easements as the Council may reasonably require to enable them to construct maintain alter and renew pipes or other works in on or under any lands of the owner for the temporary discharge of water from any of the works by this Act authorised into any available stream or watercourse :

The Council shall compensate the owner for any damage done to any crops of the owner in the execution or maintenance of any works under the powers of this Act :

- (3) The Council shall as soon as they commence to supply water from the works by this Act authorised afford to the owner free of charge at such points as he may reasonably require on the aqueduct conduit or line or lines of pipes (Work No. 6) by this Act authorised (in this section called "the aqueduct") a supply of water up to but not exceeding twelve thousand gallons in each consecutive period of twenty-four hours throughout each year but this provision shall not be deemed to have been contravened if (a) the Council fail to afford such supply for any one period not exceeding three days in any one year commencing on the first day of January or if (b) the Council do not supply more than five thousand gallons a day for any one period not exceeding six days in any one year commencing as aforesaid if and so long as the amount which the Council have so failed to supply is made up in the case (a) within seven days after the expiration of the said period of not exceeding three days and in the case (b) within fourteen days after the expiration of the said period of not exceeding six days :

- (4) The Council shall on being requested so to do by the owner execute and do at their own expense all works and acts which may be necessary for effecting the connections with the aqueduct on the lands of the

owner of any service pipe or service pipes laid or to be laid by the owner for the purpose of taking any supply of water to which the owner may be entitled under the provisions of this section: A.D. 1915.

- (5) The Council shall not be responsible for any stoppage or insufficiency of any supply of water which they are required to afford to the owner under the provisions of this section which may be occasioned by frost unusual drought or other unavoidable cause or accident or if and so long as such supply would interfere with the supply of water within the district or with any supply which by this Act the Council are required to give to any company body or person in the Rothbury rural or urban districts but the Council shall in the event of any such stoppage or insufficiency occurring take all reasonable steps to afford the supply of water to be given under the provisions of this section as quickly as possible:
- (6) If for any reason the Council shall at any time permanently cease to afford the supply of water provided for by subsection (3) of this section they shall as from the date of such cesser make to the owner in respect of any rights or easements in relation to the construction of any aqueduct conduit or line of pipes which may have been granted by the owner to the Council a perpetual annual payment calculated at the rate of twopence a year per lineal yard and in respect of any easement in relation to valve chambers which may have been so granted a perpetual annual payment calculated at the rate of five shillings a year for each valve chamber Provided always that the provisions of this subsection shall not be deemed to entitle the Council to permanently cease to afford the said supply for any reason other than the inability of the Council to maintain a sufficient supply of water within the district or to fulfil their obligations under the provisions of this Act:
- (7) The Council shall provide and maintain to the reasonable satisfaction of the owner at each point on any work of the Council at which water may be taken by the owner under the provisions of this section a suitable

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meter for measuring the amount of water so taken and each such meter and any records thereof kept by the Council shall be at all reasonable times open to inspection and examination by any person authorised in writing in that behalf by the owner and such person may take copies of or extracts from any such records :

- (8) The reading of every meter provided by the Council under the provisions of this section shall be taken quarterly at or near to the usual quarter days in every year and shall be deemed to be *prima facie* and sufficient evidence of the quantity of water supplied through the same unless it be shown or admitted that the meter is out of order or unreliable in which case the quantity supplied through such meter shall in default of agreement be determined by arbitration as hereinafter provided Particulars of all such quarterly readings of the said meters shall be furnished by the Council to the owner immediately after they shall have been taken :
- (9) No pipes or other works for the temporary discharge of water from any aqueduct reservoir or other work of the Council into any available stream or watercourse and no valve chambers constructed by the Council on lands of the owner shall be constructed otherwise than in such positions as the owner may reasonably require and in accordance with plans and sections previously approved by the owner and the Council shall in constructing any works for carrying away any overflow from the said service reservoir (Work No. 7) by this Act authorised construct the same in such position and in such manner as that the same will discharge into the brook known as the How Burn at the point where the aqueduct crosses the said burn on the west side of the field or enclosure known as Cabin Hill :
- (10) All surplus material arising in the construction or maintenance of any work by this Act authorised shall be deposited at such place as the owner may from time to time reasonably direct and the Council shall so long as any lands of the owner are used for

the purpose of any such deposit make to the owner a payment calculated at the rate of three pounds per annum per acre in respect of the lands so used : A.D. 1915.

- (11) Notwithstanding the acquisition by or grant to the Council under the provisions of this section of any lands of the owner or any rights or easements therein or thereover the owner and his tenants and lessees shall have the same liberty of working mines of coal ironstone or other minerals as if such lands rights or easements as the case may be had not been so acquired or granted and as if no works of the Council had been constructed in or upon any such lands :
- (12) The right of the owner and his lessees and tenants to use and cultivate any lands in or under which any works of the Council other than the service reservoir (Work No. 7) by this Act authorised may have been constructed shall not be interfered with and it shall be lawful for the owner and his lessees and tenants to lay out construct and use along over or under such works any roads drains pipes cables or other like works and the Council shall not fence off or sever any land of the owner in respect of which the Council may have acquired any easement or right for the purpose of constructing any such work other than lands acquired for the purposes of the said service reservoir :
- (13) No buildings or works other than the service reservoir (Work No. 7) by this Act authorised shall without the consent of the owner be constructed on any lands acquired by the Council under the powers of this Act for the purpose of such service reservoir and the banks of such reservoir shall be kept at all times in a neat and proper condition to the reasonable satisfaction of the owner and enclosed by the Council with fences of such height and character as shall be reasonably required by the owner :
- (14) In the construction and maintenance of any aqueduct conduit line or lines of pipes or other works (other than the said service reservoir) the Council shall first

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carefully remove from the surface all turf and vegetable soil on the line or site of the works and on the completion thereof or of any works of repair or maintenance thereof or any other works in relation thereto the Council shall replace the turf and restore the surface as soon as may be to its former level and state :

- (15) Except where necessary for the purpose of the construction of any works the Council shall not cut down or interfere with any timber trees or shrubs on any of the lands of the owner and any timber trees or shrubs which it may be necessary to cut down or remove shall when cut down or removed belong to the owner and the Council shall make compensation to the owner for any loss or damage he may sustain by any such trees or shrubs being cut down or interfered with :
- (16) The Council shall not erect any overhead wires for any purpose over or across any land of the owner and no barbed wire shall be used in the construction of fences or other works authorised by this Act on any such land :
- (17) The Council shall make full compensation to the owner and his tenants and lessees for any damage or reasonable expense they may incur by reason or in consequence of the leaking bursting or giving way of any works of the Council :
- (18) Notwithstanding anything contained in this Act the Council shall not deposit any soil or other materials on any lands of the owner which are outside the limits of deviation shown upon the deposited plans :
- (19) In case any dispute shall arise as to the form of any grant to be made by the owner to the Council or as to any provision to be contained therein the matter shall be submitted to and determined by such conveyancing counsel (not being the counsel employed by either party) willing to act as may be nominated for the purpose on the application of the owner or the Council by the President of the Law Society :

(20) Except so far as is by this section otherwise provided A.D. 1915.
if any difference shall arise between the Council and
the owner or any lessee or tenant of the owner under
this section or respecting any act or thing to be done
or payment to be made or right or liability there-
under such difference shall be referred to and deter-
mined by an arbitrator to be appointed in default
of agreement on the application of either party by
the President of the Institution of Civil Engineers
and subject thereto the provisions of the Arbitration
Act 1889 shall apply to any such reference :

(21) The provisions of this section shall be in addition to
and not in derogation from any other provisions of
this Act or any Act incorporated therewith which
may enure for the protection or benefit of the owner
his lessees and tenants.

23. For the protection of the Honourable Hugh Edward Joicey his heirs successors in estate and assigns for the time being entitled in possession whether for life or any greater estate to the Longhirst Estate in the county of Northumberland (all of which persons are in this section included in the expression "the owner") the following provisions shall notwithstanding anything contained in this Act and unless otherwise agreed in writing between the Council and the owner have effect:—

For protec-
tion of
Honourable
Hugh
Edward
Joicey.

(1) The Council shall not for the purpose of laying constructing and maintaining any aqueduct conduit or line or lines of pipes through any lands of the owner purchase or acquire such lands but the Council may acquire and the owner shall at the request of the Council grant to the Council free of cost such rights and easements as the Council may reasonably require to enable them to construct maintain alter and renew the aqueducts conduits or lines of pipes by this Act authorised so far as the same may be authorised in on or under any lands of the owner and the Council shall not enclose the surface of any land of the owner in connection with any aqueduct conduit or line or lines of pipes or easement acquired for the purposes thereof:

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- (2) The Council shall in constructing any aqueduct conduit or line or lines of pipes through any land of the owner fence all excavations from time to time made on the land of the owner or in some other effectual manner prevent cattle sheep and other animals from falling into such excavations and the Council shall when the works are completed remove such fence and restore the surface of the ground excavated as nearly as may be to its original state:
- (3) The Council shall not without the consent of the owner erect any wires for any purpose over or across any land of the owner and no barbed wire shall be used in the construction of fences or other works on any such land:
- (4) The right of the owner and his lessees and tenants to use and cultivate any lands in or under which any works of the Council by this Act authorised may have been constructed shall not be interfered with and it shall be lawful for the owner and his lessees and tenants to lay out construct and use along over or under such works any roads drains pipes cables or other like works:
- (5) The Council shall make full compensation to the owner and his tenants and lessees for any damage or reasonable expense they may incur by reason or in consequence of the leaking bursting or giving way of any of the works by this Act authorised:
- (6) In the construction or maintenance of any aqueduct conduit or line or lines of pipes or other works on any land of the owner the Council shall first carefully remove from the surface all turf and vegetable soil on the line or site of the works and on the completion of such works or any repairs or other maintenance thereof they shall replace the turf and restore the surface as soon as may be to its former level and state:
- (7) All surplus material arising from the construction or maintenance of any works of the Council shall if deposited on any part of the said Longhirst Estate be deposited at such place as the owner may from

time to time reasonably direct Provided that such A.D. 1915.
place shall not be at a distance of more than a
quarter of a mile from the work and the Council
shall so long as any land of the owner shall be used
for the purposes of such deposit pay to the owner
an annual rent at the rate of three pounds per acre
and so in proportion for less than an acre for all
land so used :

- (8) Notwithstanding the acquisition by or grant to the Council of any rights or easements within or over any land of the owner the owner and his lessees and tenants for the time being shall continue entitled to work all mines and minerals as if such rights or easements had not been so acquired or granted and as if no works of the Council had been constructed in or upon the lands of the owner :
- (9) Notwithstanding anything contained in this Act the Council shall not deposit any soil on any lands of the owner outside the limits of deviation shown upon the deposited plans :
- (10) The Council shall as soon as they commence to supply water from the works by this Act authorised afford and at all times thereafter continue to afford to the owner free of charge at such points within his estate as he may reasonably require on the aqueduct conduit or line or lines of pipes (Work No. 6) by this Act authorised a supply of water up to but not exceeding four thousand gallons in each consecutive period of twenty-four hours throughout each year but this provision shall not be deemed to have been contravened if (a) the Council fail to afford such supply for any one period not exceeding three days in any one year commencing on the first day of January or if (b) the Council do not supply more than one thousand five hundred gallons per day for any one period not exceeding six days in any one year commencing as aforesaid if and so long as the amount which the Council have so failed to supply is made up in the case (a) within seven days after the expiration of the said period not exceeding three days and in the case (b) within fourteen days after

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the expiration of the said period not exceeding six days :

- (11) The Council shall on being requested so to do by the owner execute and do at their own expense all works and acts which may be necessary for effecting the connections with the said aqueduct on the lands of the owner of any service pipe or service pipes to be laid by the owner for the purpose of taking any supply of water to which the owner may be entitled under the provisions of this section :
- (12) The Council shall not be responsible for any stoppage or insufficiency of any supply of water which they are required to afford to the owner under the provisions of this section which may be occasioned by frost unusual drought or other unavoidable cause or accident or if and so long as such supply would interfere with the supply of water within the district or with any supply which by this Act the Council are required to give to any company body or person in the Rothbury rural or urban districts but the Council shall in the event of any such stoppage or insufficiency occurring take all reasonable steps to afford the supply of water to be given under the provisions of this section as quickly as possible :
- (13) If for any reason the Council shall at any time permanently cease to afford the supply of water provided for by subsection (10) of this section they shall as from the date of such cesser make to the owner in respect of any easement in relation to the construction of any aqueduct conduit or line or lines of pipes which may have been granted by the owner to the Council a perpetual annual payment calculated at the rate of twopence per year per lineal yard and in respect of any easement in relation to any valve chamber which may have been so granted a perpetual annual payment calculated at the rate of five shillings a year for each valve chamber Provided always that the provisions of this subsection shall not be deemed to entitle the Council to permanently cease to afford the said supply for any reason other than

the inability of the Council to maintain a sufficient supply of water within the district or to fulfil their obligations under the provisions of this Act : A.D. 1915.

- (14) The Council shall provide and maintain to the reasonable satisfaction of the owner at each point on any work of the Council at which water may be taken by the owner under the provisions of this section a suitable meter for measuring the amount of water so taken and each such meter and any records thereof kept by the Council shall be at all reasonable times open to inspection and examination by any person authorised in writing in that behalf by the owner and such person may take copies of or extracts from any such records The reading of every meter provided by the Council under the provisions of this section shall be taken quarterly at or near the usual quarterly days in every year and shall be deemed to be *prima facie* and sufficient evidence of the quantity of water supplied through the meter unless it is shown or admitted that the meter is out of order or unreliable in which case the quantity supplied through such meter shall in default of agreement be determined by arbitration as hereinafter provided Particulars of all such quarterly readings of the said meter shall be furnished by the Council to the owner immediately after they shall have been taken :
- (15) No pipes or other works for the temporary discharge of water from any aqueduct reservoir or other work of the Council into any available stream or water-course and no valve chambers constructed by the Council on lands of the owner shall be constructed otherwise than in such positions as the owner may reasonably require and in accordance with plans and sections previously approved by the owner :
- (16) The owner will at the request of the Council grant to the Council in consideration of a perpetual annual payment calculated at the rate of one penny per lineal yard all such easements as the Council may reasonably require to enable them to construct maintain alter and renew pipes or other works in or on or under any lands of the owner for the temporary

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discharge of water from any of the works by this Act authorised into any available stream or watercourse :

The Council shall compensate the owner for any damage done to any crops of the owner in the execution or maintenance of any works under the powers of this Act :

- (17) In case any dispute shall arise as to the form of any grant to be made by the owner to the Council or as to any provision to be contained therein the matter shall be submitted to and determined by such conveyancing counsel (not being the counsel employed by either party) willing to act as may be nominated for the purpose on the application of the owner or the Council by the President of the Law Society :
- (18) Except so far as is by this section otherwise provided any difference which may from time to time arise between the owner and the Council with respect to any question under this section shall be referred to an arbitrator who shall be appointed in default of agreement by the President of the Institution of Civil Engineers on the application of either party and subject thereto the Arbitration Act 1889 shall apply to such reference :
- (19) The provisions of this section shall be in addition to and not in derogation from any other provisions of this Act or any Act incorporated therewith to the benefit of which the owner his lessees and tenants would otherwise have been entitled.

For protection of Mrs. I. F. Thorp and others.

24. For the protection of Isabella Frances Thorp or other the owner or owners of the property in the parish of Whitton known as Whitton Farm (hereinafter referred to as "the owner") the following provisions shall unless otherwise agreed in writing between the owner and the Council have effect (that is to say) :—

- (1) Notwithstanding anything contained in this Act or shown on the deposited plans the Council shall not purchase the lands respectively numbered on the deposited plans 8 11 12 13 14 and 16 in the said parish of Whitton or any part thereof but the Council may in pursuance of the powers contained

in the section of this Act of which the marginal note is "Council may acquire easements only in certain cases" acquire and the owner shall at the request of the Council grant to them subject to any existing tenancies such easements and rights as the Council may reasonably require to enable them to construct maintain alter and renew in and under the said lands the aqueduct conduit or line or lines of pipes (Work No. 6) by this Act authorised (hereinafter referred to as "the said aqueduct"):

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- (2) The said aqueduct shall not consist of more than two lines of pipes:
- (3) The Council shall construct maintain and keep the said aqueduct so far as the same may pass through or be near to the property of the owner and all works in connection therewith so far as practicable water-tight and shall indemnify the owner against any loss or damage caused by the bursting of or leaking of water from the said aqueduct or works in connection therewith:
- (4) Any telegraph or telephone wires or other means of communication laid by the Council through the property of the owner shall be placed underground along the line of the said aqueduct and not otherwise:
- (5) Notwithstanding anything contained in this Act or the grant of the said easements or rights or the construction of the said aqueduct and works it shall be lawful for the owner and the lessees and tenants of the owner to lay out construct and use along over or under the said aqueduct and works any roads drains pipes cables or other like works:
- (6) Any difference which may arise between the owner and the Council other than any difference as to the compensation to be paid by the Council to the owner for or in respect of the acquisition of the easement or right hereinbefore referred to shall be determined by an arbitrator to be agreed upon between them or failing such agreement to be appointed on the application of either party by the

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President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such determination.

For protec-
tion of Duke
of Northum-
berland.

25. For the protection of the Most Noble Henry George Duke of Northumberland K.G. and his sequels in estate or other the owner or owners of the Rothbury Estate in the county of Northumberland of the Duke of Northumberland or of any lands of the Duke of Northumberland in respect of which rights or easements in connection with Work No. 6 by this Act authorised may be granted to the Council under the provisions of this Act (all of whom are in this section referred to as "the owner") the following provisions shall notwithstanding anything contained in this Act and unless otherwise agreed between the owner and the Council apply and have effect (that is to say):—

- (1) The right of the owner and his lessees and tenants to use and cultivate any lands in or under which any works of the Council by this Act authorised may have been constructed shall not be interfered with and it shall be lawful for the owner and his lessees and tenants to lay out construct and use along over or under such works any roads drains pipes cables or other like works and the Council shall not fence off or sever any land of the owner in respect of which the Council may have acquired any easement or right for the purpose of constructing any such work:
- (2) In the construction and maintenance of any aqueduct conduit line or lines of pipes or other works the Council shall first carefully remove from the surface all turf and vegetable soil on the line or site of the works and on the completion thereof or of any works of repair or maintenance thereof or any other works in relation thereto the Council shall replace the turf and restore the surface as soon as may be to its former level and state:
- (3) Except where necessary for the purpose of the construction of any works the Council shall not cut down or interfere with any timber trees or shrubs on any of the lands of the owner and any timber trees or

shrubs which it may be necessary to cut down or remove shall when cut down or removed belong to the owner and the Council shall make compensation to the owner for any loss or damage he may sustain by any such trees or shrubs being cut down or interfered with: A.D. 1915.

- (4) The Council shall not erect any overhead wires for any purpose over or across any land of the owner and no barbed wire shall be used in the construction of fences or other works authorised by this Act on any such land:
- (5) The Council shall make full compensation to the owner and his tenants and lessees for any damage or reasonable expense they may incur by reason or in consequence of the leaking bursting or giving way of any works of the Council:
- (6) If any difference shall arise between the Council and the owner under this section or respecting any act or thing to be done or payment to be made or right or liability thereunder such difference shall be referred to and determined by an arbitrator to be appointed in default of agreement on the application of either party by the President of the Institution of Civil Engineers and subject thereto the provisions of the Arbitration Act 1889 shall apply to any such reference:
- (7) The provisions of this section shall be in addition to and not in derogation from any other provisions of this Act or any Act incorporated therewith which may enure for the protection or benefit of the owner his lessees and tenants.

26.—(1) If at any time before the Council commence to supply water from the works by this Act authorised or at any time within four years after the passing of this Act whichever shall be the longer period the Morpeth Rural District Council (hereinafter referred to as “the Morpeth Council”) for the supply of the parish of East Chevington shall by notice in writing to the Council require a supply of water in bulk not exceeding forty thousand gallons a day the Council shall as from the date when they commence to supply water from the

Supply in
bulk to Mor-
peth Rural
District
Council.

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Act, 1915.*

A.D. 1915. — works by this Act authorised or from the expiration of three months from the date of such notice whichever shall be the later supply to the Morpeth Council and the Morpeth Council shall accept and take at the price of sixpence per one thousand gallons such quantity of water as may have been demanded in such notice not exceeding the maximum aforesaid and such supply shall be taken at a uniform rate per diem at the point on the aqueduct conduit or line of pipes (Work No. 6) where the Whemleyburn Road joins the main road from Weldon Bridge to Morpeth or at such other point on the said aqueduct as may be agreed between the Council and the Morpeth Council.

(2) All water taken from the said aqueduct shall be measured by a meter or other apparatus which shall be placed in some suitable chamber or building to be provided by the Council on a site to be provided by the Morpeth Council and such meter and chamber or building and all pipes valves and other apparatus connecting it with the aqueduct shall be provided fixed constructed and maintained by the Council at the cost of the Morpeth Council. The Morpeth Council shall at all reasonable times be at liberty on giving twenty-four hours notice to the Council to inspect such meter and the works appertaining thereto and to test the accuracy thereof.

(3) The Council shall not be liable for any damage loss or expenses caused by any failure in the supply of water to the Morpeth Council if such failure be occasioned by frost unusual drought or any other unavoidable cause or accident or if and so long as such supply would interfere with the supply of water within the district or with any supply which the Council are required to give to any company body or person under any of the provisions of this Act but no payment in respect of water under this section shall be demanded by the Council in respect of the period whilst such supply is suspended.

(4) The Morpeth Council shall not supply water furnished to them under this section outside the parish of East Chevington.

(5) All payments for the water supplied shall be made quarterly on the first day of January the first day of April the first day of July and the first day of October in every year.

(6) The Council shall not under the powers of this Act collect impound divert or appropriate any springs streams or waters from any lands in the rural district of Morpeth.

(7) Any difference between the Council and the Morpeth Council under this section shall be settled by an arbitrator to be appointed by agreement or in default of agreement by the President of the Institution of Civil Engineers under and subject to the provisions of the Arbitration Act 1889. A.D. 1915.

PART III.

LANDS.

27. Subject to the provisions and for the purposes of this Act the Council may enter on take and use all or any of the lands delineated on the deposited plans and described in the deposited book of reference. Power to acquire lands.

28. The powers of the Council for the compulsory purchase of lands or easements under this Act shall not be exercised after the expiration of three years from the passing of this Act. Period for compulsory purchase of lands.

29. The following sections of the Act of 1914 are hereby incorporated with and form part of this Part of this Act and shall extend and apply to the lands by this Part of this Act authorised to be acquired and to the Council in respect thereof as fully and effectually for all intents and purposes as if such sections had been in terms re-enacted in this Act (that is to say):— Incorporation of certain provisions of Act of 1914 with this Part of Act.

Section 7 (Correction of errors in deposited plans and book of reference);

Section 9 (Persons under disability may grant easements &c.);

Section 11 (Power to retain sell &c. lands).

30. In determining any question of disputed purchase money or compensation payable in respect of lands taken in pursuance of this Act the tribunal to whom any such question is referred shall not award any sum of money for or in respect of any improvement alteration or building made or erected or for or in respect of any interest in the land created after the twentieth day of November one thousand nine hundred and fourteen if in the opinion of the tribunal the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made erected or created with a view to obtaining or increasing compensation under this Act. Provisions as to compensation.

A.D. 1915.

Costs of
arbitration
in certain
cases.

31.—(1) The tribunal to whom any question of disputed purchase money or compensation under this Act is referred shall if so required by the Council award and declare whether a statement in writing of the amount of compensation claimed has been delivered to the Council by the claimant giving sufficient particulars and in sufficient time to enable the Council to make a proper offer and if the tribunal shall be of opinion that no such statement giving sufficient particulars and in sufficient time shall have been delivered and that the Council had been prejudiced thereby the tribunal shall have power to decide whether the claimant's costs or any part thereof shall be borne by the claimant.

(2) Provided that it shall be lawful for any judge of the High Court to permit any claimant after seven days' notice to the Council to amend the statement in writing of the claim delivered by him to the Council in case of discovery of any error or mistake therein or for any other reasonable cause such error mistake or cause to be established to the satisfaction of the judge after hearing the Council if they object to the amendment and such amendment shall be subject to such terms enabling the Council to investigate the amended claim and to make an offer de novo and as to postponing the hearing of the claim and as to costs of the inquiry and otherwise as to such judge may seem just and proper under all the circumstances of the case.

(3) Provided also that this section shall be applicable only in cases where the notice to treat under the Lands Clauses Consolidation Act 1845 either contained or was endorsed with a notice to the effect of this section.

Council may
acquire ease-
ments only
in certain
cases.

32.—(1) The Council may in lieu of acquiring any lands for the purposes of the works authorised by this Act where the same are intended to be constructed underground acquire such easements only in such lands as they may require for such purposes and may give notice to treat in respect of such easements describing the nature thereof and the provisions of the Lands Clauses Acts shall apply to and in respect of the acquisition of such easements as fully as if the same were lands within the meaning of those Acts.

(2) As regards any lands in respect of which the Council have acquired easements only under the provisions of this section

the Council shall not be required or entitled to fence off or sever such lands from the adjoining lands but the owners or occupiers for the time being shall subject to such easements have the same rights to use and cultivate the said lands at all times as if this Act had not passed. A.D. 1915.

(3) Provided always that nothing in this section contained shall authorise the Council to acquire by compulsion any such easement in any case in which the owner in his particulars of claim shall require the Council to acquire the lands in respect of which they have given notice to treat for the acquisition of an easement only and every notice to treat for the acquisition of an easement shall be endorsed with notice of this provision.

33. All private rights of way over any lands which shall under the powers of this Act be acquired compulsorily shall as from the date of such acquisition be extinguished. Provided that the Council shall make full compensation to all parties interested in respect of any such rights and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement. As to private rights of way over lands taken compulsorily.

34. Subject to the provisions of this Act the Council in addition to any other lands which they are by this Act authorised to acquire may by agreement purchase or take on lease and hold for the purposes of their water undertaking any lands or any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) over or in respect of lands which the Council may deem necessary for their purposes but the quantity of lands held by the Council in pursuance of this section shall not at any time exceed ten acres. Provided that the Council shall not create or permit the creation or continuance of any nuisance on any lands purchased or taken on lease under this section nor erect any buildings thereon except offices and dwellings for persons in their employment and such buildings and works as may be incident to or in connection with the water undertaking. Power to purchase additional lands by agreement.

35.—(1) For the purpose of protecting any of their waters and waterworks against pollution fouling contamination nuisance encroachment or injury the Council may by agreement purchase acquire and take on lease any lands and may hold such lands and any other lands which the Council may have acquired for Power to purchase and hold lands and exercise powers for protection of waters and waterworks.

A.D. 1915. — the purposes of their water undertaking or are by this Act authorised to acquire so long as they shall deem it necessary or expedient for those purposes Provided that the Council shall not create or permit the creation or continuance of any nuisance on any lands acquired under this section nor erect any buildings thereon except offices and dwellings for persons in their employment in connection with the water undertaking and such buildings and works as may be incident to or connected with the said undertaking.

(2) The Council may in and upon the lands referred to in subsection (1) of this section construct and lay down drains sewers watercourses and other works and conveniences necessary or proper for the purpose of intercepting or taking all foul waters arising or flowing upon such lands or necessary or proper for preventing the water which the Council are empowered to take from being polluted and the Council may for the purposes aforesaid carry any such drain sewer or watercourse under across or along any street or road subject and according to the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes.

Power to
agree as to
drainage of
lands &c.

36. The Council may make and carry into effect agreements with the owners lessees or occupiers of any lands from through or under which any water may flow or percolate directly or derivatively into any aqueduct or other work constructed or maintained under the powers of this Act with reference to the execution by the Council or such owners lessees or occupiers of such works as may be necessary for the purpose of draining such lands or any of them or for more effectually collecting conveying and preserving the purity of the waters so flowing or percolating.

Reservation
of water
rights &c. on
sale.

37. The Council on selling any lands acquired by them in connection with their water undertaking and not required for the purposes of that undertaking may reserve to themselves all or any part of the water rights or other easements belonging thereto and may make the sale subject to such reservations accordingly and may also make any such sale subject to such other reservations special conditions restrictions and provisions with respect to the use of water exercise of noxious trades or discharge or deposit of manure sewage or other impure matter and otherwise as they may think fit.

PART IV.

A.D. 1915.

SUPPLY OF WATER.

38. The limits of this Act for the supply of water shall be the district. Water limits.

39. The provisions of this Act with regard to water shall to the exclusion of the provisions of the Public Health Acts relating to water apply to the existing waterworks and water undertaking of the Council which shall for all purposes be deemed to form part of the water undertaking of the Council under this Act. Act to extend to existing undertaking.

40. The water supplied by the Council need not at any time be delivered at a pressure greater than that which can be afforded by gravitation from the service reservoir or tank from which the supply is given. Limit of pressure.

41.—(1) The Council shall at the request of the owner or occupier of any dwelling house or part of a dwelling house entitled under the provisions of this Act to demand a supply of water for domestic purposes furnish to such owner or occupier a sufficient supply of water for such domestic purposes at rates not exceeding the rates per annum hereinafter specified (that is to say):— Rates at which water is to be supplied for domestic purposes.

Where the rateable value of the premises so supplied does not exceed six pounds ten shillings the sum of thirteen shillings:

Where such rateable value exceeds six pounds ten shillings at the rate of ten pounds per centum upon such rateable value.

(2) The rateable value of any such dwelling house or part of a dwelling house shall be ascertained by the valuation list in force at the commencement of the quarter for which the rate accrues or if there is no such list in force by the last rate made for the relief of the poor. Provided that where the water rate is chargeable on the rateable value of a part only of any dwelling house entered in the valuation list or poor rate (such part not being separately assessed to the rate for the relief of the poor) such rateable value shall be a fairly apportioned part of the rateable value of the whole tenement ascertained as aforesaid the apportionment in case of dispute to be determined by a court of summary jurisdiction.

[Ch. lxii.] *Ashington Urban District Council* [5 & 6 GEO. 5.]
Act, 1915.

A.D. 1915.

(3) In addition to the foregoing charges the Council may charge in respect of every watercloset beyond the first (for which no additional charge shall be made) on any premises within the limits of supply a sum not exceeding five shillings per annum and for every fixed bath capable of containing not more than fifty gallons a sum not exceeding ten shillings per annum and for every fixed bath capable of containing more than fifty gallons such sum as the Council may think fit such additional sums to be paid quarterly in advance and to be recoverable in all respects with and as the water rate.

Agreements
as to supply
of water in
certain cases.

42. The Council may agree with the owner or occupier of any premises within the limits of supply who is not entitled to demand a supply of water from the Council to extend their mains to or over the property of such owner or occupier or to supply such premises with water in either case upon such terms as may be agreed and may recover from such owner or occupier any sum or sums of money agreed to be paid in respect of such supply in the same manner as water rates or rents are recoverable by them.

Supply of
water for
other than
domestic
purposes and
by measure.

43. The Council may supply water for other than domestic purposes on such terms and conditions as the Council think fit and may supply water by measure either for domestic or other purposes and the moneys payable for the supply of water under this section shall be recoverable in the same manner as water rates. Provided always that no person shall be entitled to a supply of water for other than domestic purposes if such supply would interfere with the sufficiency of the supply of water for domestic purposes throughout the limits of supply.

Supply of
water by
hose pipe for
washing car-
riages &c.

44. When water supplied for domestic purposes is used for washing carriages or motor cars or for other purposes in premises where carriages or motor cars are kept the Council may if a hose pipe or other similar apparatus is used charge such additional sum not exceeding twenty shillings per annum as they may prescribe and any sum charged under this section shall be recoverable in the same manner as water rates.

Supply to
houses partly
used for
trade &c.

45.—(1) The Council shall not be bound to supply with water otherwise than by measure any building used by an occupier as a dwelling house whereof any part is used by the

same occupier for any trade or manufacturing purpose for which water is required. A.D. 1915.

(2) Where a supply of water to a farmhouse is used for farming purposes the Council may require that the supply for farming purposes shall be taken by meter but nothing in this section shall authorise the Council to refuse a supply of water for domestic purposes to a farmhouse at the ordinary rate calculated on the rateable value thereof.

46. The price to be charged for a supply of water by measure shall not exceed one shilling and sixpence per one thousand gallons Provided that the Council shall be entitled to charge for each such supply such minimum sum not exceeding five shillings as they may prescribe in respect of the water supplied in any quarter of a year. Price of supply by measure.

47. Where a house supplied with water is let to monthly or weekly tenants or tenants holding for any other period less than a quarter of a year the owner instead of the occupier shall if the Council so determine pay the rate for the supply but the rate may be recovered from the occupier and may be deducted by him from the rent from time to time due from him to the owner Provided that no greater sum shall be recovered at any one time from any such occupier than the amount of rent owing by him or which shall have accrued due from him subsequent to the service upon him of a notice to pay the rate. Rates payable by owners of small houses.

48. Where water is supplied by measure the register of the meter or other instrument for measuring water shall be primâ facie evidence of the quantity of water consumed and in respect of which any water rate is charged and sought to be recovered by the Council Provided that if the Council and the person to whom the water is supplied differ as to the quantity consumed such difference shall be determined upon the application of either party by a court of summary jurisdiction who may also order by which of the parties the costs of the proceedings before them shall be paid and the decision of such court shall be final and binding on all parties. Register of meter to be primâ facie evidence.

49.—(1) The Council may make byelaws for the purpose of preventing the waste undue consumption misuse or contamination of water and may by such byelaws prescribe the size of water. Byelaws for preventing waste &c. of water.

[Ch. lxii.] *Ashington Urban District Council* [5 & 6 GEO. 5.]
Act, 1915.

A.D. 1915. — nature materials workmanship and strength and the mode of arrangement connection disconnection alteration and repair of pipes meters cocks ferrules valves soil-pans waterclosets baths cisterns and other apparatus (in this section referred to as "water fittings") to be used and forbid any arrangements and the use of any water fittings which may allow or tend to waste undue consumption misuse erroneous measurement or contamination.

(2) Such byelaws shall apply only in the case of premises to which the Council are bound to afford and do in fact afford or are prepared on demand to afford a constant supply.

(3) In case of failure of any person to observe such byelaws as are for the time being in force the Council may if they think fit after twenty-four hours' notice in writing enter and by and under the direction of their duly authorised officer repair replace or alter any water fittings belonging to or used by such person and not being in accordance with the requirements of such byelaws and the expense of every such repair replacement or alteration shall be recoverable by the Council as the water rates in respect of the premises are recoverable.

As to communication pipes.

50.—(1) For the purpose of complying with any obligation under the Waterworks Clauses Act 1847 to maintain any pipe or apparatus the person liable to maintain the same shall have the like power to open the ground as is conferred upon him by and subject to the conditions of sections 48 to 52 of the Waterworks Clauses Act 1847 in relation to the laying of communication pipes.

(2) The Council may by agreement with any owner or occupier entitled or required to lay maintain repair or remove any communication pipe and for that purpose to open or break up any street in the limits of supply execute such works on behalf of such owner or occupier and any expenses incurred by the Council shall be repaid by the owner or occupier with whom the agreement is made and shall be recoverable summarily as a civil debt.

Power to Council to repair communication pipes.

51. If by reason of any injury to or defect in any communication pipe which the Council are not under obligation to maintain any waste of water or injury or risk of injury to person or property is caused or likely to be caused it shall be lawful for the Council to execute such repairs as they may

think necessary or expedient in the circumstances of the case without being requested so to do and the expense incurred by the Council in executing such repairs shall be recoverable by the Council from the owner of the premises supplied or in cases where the communication pipe has been laid by and belongs to the occupier of such premises from the occupier. Provided that except in case of emergency the Council shall not under the powers of this section enter into any house or private premises unless they shall have given to the owner or occupier of such house or premises not less than twenty-four hours' notice of their intention so to enter. A.D. 1915.

52. When several houses or parts of houses in the occupation of several persons are supplied with water by one common pipe belonging to the several owners or occupiers of such houses or parts of houses the said several owners or occupiers shall be liable to contribute the amount of any expenses from time to time incurred by the Council in the maintenance and repair of such pipe and their respective proportions of contributions shall be settled by the surveyor or other officer duly authorised in that behalf by the Council. Maintenance of common pipe.

53. The Council shall not be bound to supply more than one house by means of the same communication pipe and they may if they think fit require that a separate pipe be laid from the main pipe into each house supplied by them with water. Council not bound to supply several houses by one pipe.

54. A notice to the Council from a consumer for the discontinuance of a supply of water shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Council or be given by the consumer personally at the office of the Council. Notice of discontinuance.

55. The Council may sell meters and any fittings connected therewith upon and subject to such terms (pecuniary or otherwise) and conditions as they think fit. Power to sell meters.

56. Before any person connects or disconnects any meter by means of which any of the water of the Council is intended to be or has been registered he shall give not less than twenty-four hours' notice in writing to the Council of his intention to do so and all alterations or repairs and the connecting and disconnecting of meters shall be done at his cost and under due superintendence of an officer or person authorised by the Council. Notice to Council of connecting or disconnecting meters.

A.D. 1915. Council and any person offending against this enactment shall for every such offence be liable to a penalty not exceeding forty shillings.

Power to
supply fit-
tings &c.

57.—(1) The Council may if requested by any person supplied or about to be supplied by them with water furnish to him and repair or alter but shall not manufacture any such pipes valves cocks cisterns baths meters soil-pans water-closets and other fittings as are required or permitted by their regulations and may provide all materials and work necessary or proper in that behalf and the reasonable charges of the Council in providing such materials and executing such work shall be paid by the person requiring the same.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Council as the actual owners thereof.

Penalty for
injuring
meters &c.

58.—(1) Every person who wilfully fraudulently or by culpable negligence injures or suffers to be injured any pipe meter or other instrument for measuring water or any fittings belonging to the Council or who fraudulently alters the index to any meter or other instrument for measuring water or prevents any meter or other instrument for measuring water from duly registering the quantity of water supplied or fraudulently abstracts consumes or uses water of the Council shall (without prejudice to any other right or remedy for the protection of the Council) be liable to a fine not exceeding five pounds and the Council may in addition thereto recover the amount of any damage by them sustained.

(2) In any case in which any person has wilfully fraudulently or by culpable negligence injured or suffered to be injured any pipe meter instrument or fittings belonging to the Council or has fraudulently altered the index to any meter or other instrument for measuring water or prevented the same from duly registering the quantity of water supplied or has fraudulently abstracted consumed or used the water of the

Council the Council may also enter upon the premises occupied by the offender and repair such injury and do all such works matters and things as may be necessary for insuring the proper registering by such meter of the quantity of water supplied by means thereof and the expense of such repair and of all such works matters and things shall be repaid to the Council by the person so offending and may be recovered by them as water rates are recoverable The existence of artificial means for causing such injury alteration or prevention or for abstracting consuming or using water of the Council when such pipe meter instrument or fittings is or are under the custody or control of the consumer shall be *prima facie* evidence that such injury alteration prevention abstraction consumption or use as the case may be has been fraudulently knowingly and wilfully caused by the consumer using such pipe meter instrument or fittings. A.D. 1915.

59.—(1) Subject to the provisions of the Waterworks Clauses Act 1847 the Council may for the purpose of preventing and detecting waste affix and maintain meters and similar apparatus on the service pipes and mains of the Council and stopcocks in the pipes supplying houses with water and may insert in the roads or footways the necessary covers or boxes for giving access and protection thereto and may for that purpose break up and interfere temporarily with public and private streets roads lanes footways courts passages tramways gas or water pipes electric lines wires and apparatus. Detection of waste.

(2) Provided that the Council shall not interfere with any electric lines wires and apparatus belonging to or used by the Postmaster-General except in accordance with and subject to the provisions of the Telegraph Act 1878.

(3) Provided also that nothing in this Act shall extend to or authorise any interference with any works of any undertakers within the meaning of the Electric Lighting Acts 1882 to 1909 to which the provisions of section 15 of the Electric Lighting Act 1882 apply except in accordance with and subject to the provisions of that section.

(4) Provided also that the Council shall not under the powers of this section interfere with the access to any passenger or goods station of the North Eastern Railway Company.

60. The Council may enter into and carry into effect agreements with any local authority company or persons for the Contracts for supply of water in bulk.

[Ch. lxii.] *Ashington Urban District Council* [5 & 6 GEO. 5.]
Act, 1915.

A.D. 1915. — supply of water beyond the limits of supply to any such authority company or persons respectively in bulk for any purpose and for such remuneration and on such terms and conditions and for such period as may be agreed upon Provided that such supply shall not be given except with the consent of any company or person supplying water under Parliamentary authority within the area to be supplied and of the local authority of the district comprising that area nor if and so long as such supply would interfere with the supply of water for domestic purposes within the limits of supply Provided also that nothing in this section shall authorise the Council to lay any mains or other pipes or to interfere with any street beyond the limits of supply.

PART V.

FINANCIAL.

Power to
borrow.

61.—(1) The Council may from time to time independently of any other borrowing power borrow at interest any sum or sums of money for the purposes hereinafter mentioned not exceeding the respective amounts following (that is to say):—

- (A) For the purchase of lands and easements for and the construction of the waterworks by this Act authorised the sum of seventy-three thousand pounds:
- (B) For new mains extensions of mains service pipes and other waterworks purposes the sum of eight thousand pounds:
- (c) For paying the costs charges and expenses of this Act as hereinafter provided the sum requisite for that purpose.

(2) The Council shall pay off all money borrowed by them under subsection (1) of this section within the respective periods (each of which is in this Act referred to as "the prescribed period") following (that is to say):—

As to money borrowed for the purposes (A) mentioned in this section within sixty years from the date or dates of borrowing the same:

As to money borrowed for the purposes (B) mentioned in this section within thirty years from the date or dates of borrowing the same:

As to money borrowed for the purpose (c) mentioned in this section within five years from the passing of this Act.

(3) The Council may also with the consent of the Local Government Board borrow such further money as may be necessary for any of the purposes of this Act. A.D. 1915.

Any money borrowed under this subsection shall be repaid within such period (in this Act referred to as "the prescribed period") as may be prescribed by the Local Government Board.

(4) In order to secure the repayment of the money borrowed under this section and the payment of the interest thereon the Council may mortgage or charge the water revenue and the district fund and the general district rate.

(5) The provisions of this section shall not limit the powers conferred on the Council by section 48 (Power to use one form of mortgage for all purposes) of the Act of 1914.

62. Notwithstanding anything in this Act the Council shall not under the powers of this Act borrow any money other than money required for the payment of the costs charges and expenses of this Act as hereinafter provided during the continuance of the present war and twelve months thereafter unless the consent of the Treasury has been previously obtained. Council not to borrow during continuance of war.

63. Section 51 (As to temporary borrowing) of the Act of 1914 shall be read and have effect as if the words "or water undertaking" were inserted in subsection (1) of that section after the words "gas undertaking." As to temporary borrowing.

64. The powers of borrowing money given by this Act shall not be restricted by any of the regulations contained in section 234 of the Public Health Act 1875 and in calculating the amount which the Council may borrow under that Act any sums which they may borrow under this Act and the sums borrowed or to be borrowed for the purpose of constructing works for the supply of water under and in pursuance of the sanction of the Local Government Board dated the eighth day of October one thousand nine hundred and fourteen authorising the borrowing of the sum of four thousand seven hundred and seventy-one pounds repayable within twenty years shall not be reckoned. Section 234 of Public Health Act 1875 not to apply.

65. The Council shall pay off all moneys borrowed by them on mortgage under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund Mode of payment off of money borrowed.

[Ch. lxii.] *Ashington Urban District Council* [5 & 6 GEO. 5.]
Act, 1915.

A.D. 1915. — or partly by one of those methods and partly by another or others of them. Provided that the Council shall not be bound to commence the repayment by sinking fund or otherwise of any moneys borrowed for the purposes (A) mentioned in the section of this Act whereof the marginal note is "Power to borrow" until the expiration of five years from the time of borrowing the same or the completion of the works whichever shall be the earlier date.

Proceeds of
sale of sur-
plus lands.

66. So long as any lands remain to be acquired by the Council under the authority of this Act they may so far as they consider necessary apply any capital moneys received by them on resale or exchange or by leasing in pursuance of this Act in the purchase of lands so remaining to be acquired but as to capital moneys so received and not so applied and any other moneys received on capital account under the powers of this Act the Council shall apply the same in or towards the extinguishment of any loan raised by them under the powers of this Act and such application shall be in addition to and not in substitution for any other mode of extinguishment provided by this Act except to such extent and upon such terms as may be approved by the Local Government Board. Provided that—

(1) The amount to be applied in the purchase of lands under this section shall not exceed the amount for the time being unexhausted of the borrowing powers conferred by this Act for the purpose of such purchase :

(2) The borrowing powers conferred by this Act for the purpose of such purchase shall be reduced to the extent of the amount applied in the purchase of lands under the provisions of this section.

Incorporation of certain sections of Act of 1914.

67. The following sections of the Act of 1914 shall subject to the provisions of this Act extend and apply mutatis mutandis to and in the case of moneys to be borrowed under the provisions of this Act and such sections shall be incorporated in this Act and be read and have effect as if they had reference to moneys borrowed under the powers of this Act (that is to say) : —

Section 42 (Method of raising money) ;

Section 43 (Provisions of Public Health Act as to mortgages to apply) ;

A.D. 1915.

Section 46 (Sinking fund);

Section 50 (Protection of lender from inquiry);

Section 52 (Council not to regard trusts);

Section 55 (Application of money borrowed).

68.—(1) The Council shall apply all moneys received by them in respect of their water undertaking except money borrowed and money received from the sale of lands or other moneys received on capital account as follows (that is to say):—

Application
of water
revenue and
deficiency in
receipts.

(First) In payment of the working and establishment expenses and cost of maintenance of the water undertaking:

(Secondly) In payment of the interest on moneys borrowed by the Council for the purposes of the water undertaking:

(Thirdly) In providing the requisite appropriations instalments or sinking fund payments in respect of moneys borrowed by the Council for the purposes of the water undertaking:

(Fourthly) In extending improving and constructing (if the Council think fit) any works for the purposes of the water undertaking:

(Fifthly) In providing a reserve fund (if the Council think fit) by setting aside such money as they think reasonable and investing the same and the resulting income thereof in statutory securities and accumulating the same at compound interest until the fund so formed amounts to the maximum reserve fund for the time being prescribed by the Council not exceeding a sum equal to one fifth of the aggregate capital expenditure for the time being upon the water undertaking of the Council which fund shall be applicable to answer any deficiency at any time happening in the income of the Council from the water undertaking or to meet any extraordinary claim or demand at any time arising against the Council in respect of the water undertaking or for payment of the cost of renewing any part of the water undertaking and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often

[Ch. lxii.] *Ashington Urban District Council* [5 & 6 Geo. 5.]
Act, 1915.

A.D. 1915

as such reduction happens **Provided** that resort may be had to the reserve fund under the foregoing provisions although such fund may not at the time have reached or may have been reduced below the prescribed maximum:

And the Council shall carry to the district fund so much of any balance remaining in any year of the income of the water undertaking (including the interest on the reserve fund when such fund amounts to the prescribed maximum) as may in the opinion of the Council not be required for carrying on improving or extending the water undertaking and paying the current expenses connected therewith.

(2) Any deficiency in the revenue and receipts of the Council in respect of the water undertaking to meet any of the payments first secondly and thirdly enumerated in subsection (1) of this section shall in the absence of a reserve fund applicable to the purpose or so far as such reserve fund is not sufficient for the purpose be from time to time made good out of the district fund and to the extent that such fund is insufficient out of the next general district rate to be made by the Council.

Expenses of
executing
Act.

69. Save as otherwise by this Act expressly provided all expenses incurred by the Council in carrying into execution the provisions of this Act (except such of those expenses as are to be paid out of borrowed moneys) shall be paid out of the district fund or general district rate.

PART VI.

MISCELLANEOUS.

Dwelling-
houses for
persons in
Council's
employment.

70. The Council may purchase or take on lease dwelling-houses for persons employed by them for the purposes of their water undertaking and may erect and maintain dwelling-houses for such persons upon any lands for the time being belonging to the Council for the purposes of the said undertaking and (subject to the terms of the lease) upon any lands for the time being leased by the Council for the purposes of the said undertaking.

In executing
works for
owner Coun-
cil liable for
negligence
only.

71. Whenever the Council or the surveyor or other duly authorised officer of the Council under any enactment or bye-law for the time being in force within the district execute re-execute or alter any work or do any act or thing in default or

at the request of the owner occupier or other person required to do such work act or thing (not being undertakers under any Act or Order made under the Tramways Act 1870 the Light Railways Act 1896 or the Electric Lighting Acts 1882 to 1909) the Council shall not as between themselves and such owner occupier or other person in the absence of any negligence on the part of the Council or the surveyor or other such officer as aforesaid or of any contractor or other person employed by them or him be liable to pay any damages penalties costs charges or expenses for or in respect of or consequent upon the executing re-executing or altering of such work or the doing of such act or thing and any such damages penalties costs charges or expenses paid by the Council in the absence of negligence as aforesaid shall be deemed to be part of the expenses payable by such owner occupier or other person and shall be recoverable accordingly.

A.D. 1915.

72. Where under this Act or under any general or local Act for the time being in force in the district the Council give their consent to the execution of any work or the doing of any act or thing subject to any terms or conditions which they are authorised to impose any breach of any such terms or conditions shall be deemed as regards liability to a penalty and other consequences equivalent to the execution of the work or the doing of the act or thing without the required consent.

As to breach of conditions of consent of Council.

73. The provisions of sections 182 to 186 of the Public Health Act 1875 so far as they relate to byelaws made by an urban sanitary authority shall apply to all byelaws made by the Council under the powers of this Act.

Confirmation of byelaws.

74. Where under the provisions of this Act the Council shall construct or do any works for the common benefit of two or more buildings belonging to different owners the expenses which under this Act are recoverable by the Council from the owners shall be paid by the owners of such buildings in such proportions as shall be determined by the surveyor or in case of dispute by a court of summary jurisdiction.

Apportionment of expenses in case of joint owners.

75. Save as otherwise by this Act expressly provided all informations and complaints under or in respect of the breach of any of the provisions of this Act or any byelaws made thereunder may be laid and made by an officer of the Council authorised in that behalf or by the clerk.

Informations by whom to be laid.

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Summons or
warrant may
contain
several sums.

Incorpora-
tion of cer-
tain sections
of Act of
1914.

76. Where the payment of more than one sum by any person is due under the Act of 1914 or this Act any summons or warrant issued for the purposes of those Acts in respect of that person may contain in the body thereof or in a schedule thereto all the sums payable by him.

77. The following sections of the Act of 1914 are hereby incorporated with this Act and shall apply as if the same with the necessary modifications were set out in this Act (that is to say) :—

Section 62 (Application of section 265 of Public Health Act 1875);

Section 65 (As to appeal);

Section 67 (Recovery of penalties &c.);

Section 68 (Recovery of demands);

Section 69 (Inquiries by Local Government Board);

Section 71 (Damages and charges to be settled by justices);

Section 72 (Penalties to be paid over to treasurer);

Section 73 (Compensation &c. how to be determined);

Section 74 (Saving for indictments &c.);

Section 75 (Powers of Act cumulative);

Section 76 (Judges &c. not disqualified).

Crown
rights.

78. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown.

Suspension
of powers in
certain
events.

79.—(1) If the mayor aldermen and burgesses of the borough of Tynemouth (in this section called "the corporation") shall introduce and bonâ fide promote in the next session of Parliament available for Private Bill legislation a Bill for an Act to extend the limits of supply of the corporation to include the district and to empower and require the corporation—

(a) To construct with all reasonable dispatch such works (including a service reservoir which shall have an initial capacity of not less than one million gallons and which shall be increased to at least two million gallons when the average daily consumption of water in the district in any one year shall exceed four hundred thousand gallons a day such reservoir to be constructed in a position suitable and convenient for the efficient supply of the district) as may be necessary to enable the Corporation to supply water throughout the district at a pressure at the

boundary of the district equal to ninety pounds on the square inch reduced to sea level; A.D. 1915.

(b) To supply water throughout the district subject to the provisions of this section and in all other respects in accordance with the provisions of the Waterworks Clauses Acts 1847 and 1863 and under the same terms and conditions and at the same rates and charges for all purposes as those for the time being charged within the county borough of Tynemouth and not exceeding the rates and charges authorised by the Tynemouth Corporation Water Acts 1897 and 1907; and

(c) To purchase the mains pipes and meters within the district belonging to the Council at the then value thereof and to take over all existing obligations (other than debts and liabilities) of the Council in connection with the present water supply of the district The price failing agreement to be settled by arbitration in accordance with the provisions of the Arbitration Act 1889;

the Council shall not oppose such Bill except in so far as may be necessary to secure the insertion of provisions to protect their interests in conformity with the provisions of this section and for that purpose the Council shall be at liberty to petition either or both Houses of Parliament and to appear on such petition by counsel agents and witnesses as they may think fit.

(2) The Bill shall contain a provision that if at any time the corporation shall not have sufficient water to give a full supply throughout the limits of supply of the corporation extended as aforesaid the consumers of water within the district shall be entitled to the like treatment to that given to consumers of water within the borough of Tynemouth and in particular the consumers of water in the district shall be entitled to as much water per head for domestic purposes as is supplied by the corporation to consumers within the borough for domestic purposes.

(3) The Bill shall also contain a provision that if at any time the boundary of the district shall be extended the corporation shall take the necessary steps to include the extended area within their limits of supply on the same terms in all respects as those which apply to the district as now constituted.

(4) The Council shall not exercise any of the powers of this Act pending or during the promotion of the said Bill by

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A.D. 1915. the corporation and if the corporation obtain an Act containing the powers provisions and obligations set forth in this section they shall with all reasonable despatch proceed to execute such works and to supply water by means thereof in accordance with such provisions and obligations and if within one year after the passing of such Act the corporation shall have substantially commenced such works (unless prevented by an Order of the Local Government Board or other government department) the Council shall not proceed with the construction of any of the works by this Act authorised pending or during the construction of such works by the corporation and if the corporation shall complete such works and afford such supply throughout the district in accordance with the provisions of the Act to be obtained by them within three years from the passing of such Act or such further period as the Local Government Board may allow the powers of the Council to construct the works by this Act authorised and the powers and obligations of the Council to supply water within the district shall cease and determine Provided that if the corporation shall not within the said period of one year unless prevented as aforesaid have substantially commenced such works or having commenced the same shall not within the said period of three years or such further period as the Local Government Board may allow have completed such works and afforded such supply the powers of the corporation to construct such works and to supply water within the district shall cease and determine.

Expenses of
Act.

80. The costs charges and expenses preliminary to and of and incidental to preparing and obtaining this Act including the costs charges and expenses preliminary to and of and connected with the compliance with the requirements of the Borough Funds Acts 1872 and 1903 shall after taxation by the taxing officer of the House of Lords or of the House of Commons be paid by the Council out of the district fund and general district rate or out of moneys to be borrowed by the Council under this Act.

Printed by EYRE and SPOTTISWOODE, LIMITED,
FOR

FREDERICK ATTERBURY, Esq., C.B., the King's Printer of Acts of Parliament.

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